

DEBRE MARKOS UNIVERSITY



SCHOOL OF LAW

Title: Admissibility of confession in criminal trial; its disposition in criminal justice system of Ethiopia.

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Declaration Statement

I hereby declare that, this senior thesis has prepared for the partial fulfillment of the requirements for L.L.B Degree in “admissibility of confession before criminal trial: its disposition under Ethiopian criminal justice system” is my original work and that it has not previously been submitted for assessment to another University or another qualification.

Asmamaw Abosie

Signature.....

Date

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Table Contents

page

Declaration Statement.....	i
Acknowledgments.....	ii
Acronyms.....	v
Abstract.....	vi
CHAPTE ONE: INTRODUCTION.....	1
1.1 General Background of Study.....	1
1.2 Statement of Problem.....	4
1.3 Objective of Study.....	4
1.3.1 General Objective.....	4
1.3.2 Specific Objective.....	4
1.4 Research Questions.....	5
1.4.1 General questions.....	5
1.4.2 Specific questions.....	5
1.5 Significance of Study.....	5
1.6 Scope of the Study.....	6
1.7 Research Design and Methodology.....	6
1.8 Organization of the study.....	7
CHAPTER TWO: THEORETICAL OVERVIEW OF ADMISSIBILITY OF CONFESSION INCRIMINAL TRIAL.....	8
2.1 Various Theories Underlying Law of Confession.....	8
2.2 Criminal Justice System Overview.....	9
2.2.1 The Relation between the Two Models.....	11
2.3 Some Fundamental Rights of the Suspect during Criminal Proceeding and Admissibility of Confession in General.....	11
2.4 Rules of Interrogation and Confession.....	13
2.4.1 Exclusionary Rule.....	14
2.5 Admission and Confession Distinguished.....	14
2.6 Relevancy of Confession.....	16
2.7 Rational for Excluding Involuntary Confession.....	17
2.8 Appropriateness of Confession in Convicting Accused person.....	19
CHAPTER THREE: ANALYSIS OF INTERNATIONAL HUMAN RIGHT STANDARDS OF ADMISSIBILITY OF CONFESSIONAND ETHIOPIAN LAWS.....	21

3.1 International Human Right Standards of Admissibility of Confession.....	21
3.2. Regional human right standards of admissibility of confession.....	21
3.3Status of Confession under Ethiopian law.....	22
3.3.1FDREConstitutional Human Right Protection Afforded Against Involuntary Confession.....	23
3.4 Research Findings.....	24
CHAPTERFOUR: CONCLUSION AND RECOMMENDATION.....	28
4.1 Conclusion.....	28
4.2 Recommendation.....	30
Bibliography.....	31

Acronyms

UN	United Nation
FDRE	Federal Democratic Republic of Ethiopia
UDHR	Universal Declaration of Human Right
CR.PRO.C	Criminal Procedure Code of Ethiopia
CIV.PRO.C	Civil Procedure Code of Ethiopia
CIV.C	Civil Code of Ethiopia
ICCPR	International Covenant on Civil and Political Right
CRC	Convention on the Right of Child
ART	Article
US	United States of America

Abstract

Despite increased evidence that confessions may be unreliable, they remain the golden standard of evidence for police investigations. One reason for the rejection of some confessional statements is that when confessions are not voluntary there is the danger of the accused falsely implicating himself but this is not the only case sometimes we may ask corroborative evidence even in case of voluntary confession. Different countries have different rules governing the admissibility of confessions. These rules serve to guarantee the occurrence of wrongful convictions. They also serve as a deterrent to abusive interrogation by the police.

Some interrogative techniques violate the defendant's human rights or procedural rights. In this paper the fundamental rules and procedures of confession, the probative value of confessions, the factors that affect the admissibility of a confessional statement, the theories and rationales for excluding involuntary confession and other facts related to confessions examined. The effect of confession on Ethiopian criminal justice system of Ethiopia will be assessed.

CHAPTE ONE: INTRODUCTION

1.1General Background of Study

Prior to the emergence of modern state and formal justice system, human society had customary rules, procedures and institutions through which disputes were resolved. In the resolution of disputes, particularly in criminal cases, the main parties involved were victims ,offender and the community with in which the crime had been committed .The process of justice administration was mainly through reconciliation. Apart from being community based, the customary justice systems aimed at restoring the ruptured relationship and aimed at integrating the offender with the community.¹

There are two models of criminal justice system, which entail how much the use of coercive power of state in providing justice for society.²The first model is due process model, the primary focus of this model is protection of innocent, limiting governmental power for better enforcement of human right, more over it focus on respect and protect individual right of suspect. In this model the parties , are active role which means that adversarial contest at trial stage is .At investigation stage it relies on formal adjudication on the process of fact finding .It concerned on legal guilty i.e. presumption of innocent until proven guilty and burden of proof ;beyond reasonable doubt .Too many guilt go free rather than one innocent prosecute.³

The other model is crime control model, which is primarily focused on punishment of offenders and repression of crime to protect the peace and security of society .There is a probability of guilt because it is concerned on factual guilt at investigation stage by whatever means. Even it

¹ Uzspace.uzullu.ac.za/handle/ 10530 Accessed on o1/02/09

²Wondwosen Demise Kassa, (Ass.proff.) Ethiopian Criminal Procedure, Addis Ababa, Sep 2012, p.30-31

³ Ibid

more focus on informal fact finding process and adversarial contest never go beyond encounter between police and suspect /less adversarial at trial stage and parties are passive role.⁴

Finally, our criminal justice system is more of characterized as due process model. When I say this, a good witness is international instrument in which Ethiopia is a party. Various international instruments ratified and acceded by Ethiopia have incorporated provisions giving recognition to many of rights for the accused person. Among others some of the instruments are international covenant on civil and political right, universal declaration of human right, African charter on human and peoples right and others.⁵

Domestically, federal democratic republic of Ethiopian constitution in its chapter three lists down fundamental rights and freedoms of human person particularly for the accused. Likewise, other legislations i.e. criminal laws and procedural laws gives more focus on individual right of the suspect and controlling crime by punishing the true criminal offender then at the end provide justice for the community. Criminal justice starts its motion at the early stage when there is a commission of crime/offence/, which is punishable under the Ethiopian criminal law. The commission of offence may be directly communicated to police by informant or it may obtain by personal observation directly. ⁶Up on receipt of information the police proceed into investigation of crime .Investigation is a process of screening out cases which do not merit criminal prosecution, collecting appropriate evidence for the prosecution of offender. The same is true under Ethiopia law, if the police receive any information about the commission of crime, then the police has proceed to investigate even if he is doubts whether the information as to commission of crime is correct or not

⁴ Ibid

⁵General Assembly of United Nation International Covenant on Civil and Political rights adopted 19,December ,1966 ,art.14(3)g

⁶Federal Democratic Republic of Ethiopia Constitution, 1995, Neg. Gaz.1st year no 1, art.19(5)

The first step of investigation is interrogation. The police call the suspect and ask him whether he has committed the offence.⁷In this paper I will sort out the rules and procedures that the police will follow and the fundamental human right of the suspect during interrogation protected, the probative value of voluntary confession will be assessed. More over the suspects' widest right protected under different international instrument up to FDRE constitution will be examined.

Confession is nowhere defined under Ethiopian legal instrument. However as we understand from different literatures, a confession is a statement made by a person charged with the commission of crime communicated to another person, wherein he acknowledges himself to be guilty of offence charged and discloses the circumstance of the act or his degree of participation in it. On the other hand, in other word confession is a free and voluntary admission of guilt. Sometimes to convict the defendant, making statement of admission is not sufficient.⁸

When a court of law considers a question, weather a confession is admissible as evidence or it should satisfied beyond reasonable doubt that the confession was obtained voluntarily and based on fundamental fairness to which the accused during his interrogation by the police and during the recording of his confession.

In this paper, admissibility of confession before criminal trial and its disposition on criminal justice system will assess. Moreover, assessment of our laws in relation to criminal justice system as well as its compatibility with the international laws will be examined .The probative value where does a confession shall be given. The type of confession that we consider as inadmissible before court and weather the fundamental human right of the suspect is protected or not will be answered and discussed in this thesis. The relevancy of confession for the court its merit in many aspects will be assessed .more over the advantage of confession and its disposition for criminal justice, in criminal trial and other core concepts of admissibility of confession will be evaluated.

⁷Ethiopian criminal procedure code, 1961, Neg. Gaz. Proclamation no 185,art.22&ff

⁸ Teshager worku Revised by H/Mariam Yohannes, Bahir Dar, law of Criminal Procedure may, 2009,p-44

1.2 Statement of Problem

In the process of interrogation, the investigative police officer may obtain incriminating statement from the suspect those statement could be admission, confession or simply exculpating statement. If those statements are taken by respecting due process of the suspect, it serves justice. The problem comes to picture incase if the accused due process right is not adhered to. A confession may be practiced for different reasons /for money , famous and for other /do our laws have a rule on which specific crimes the court need further evidence in addition to confession .Mainly confession is practiced in criminal trial, do our laws has criteria for admissibility of confession before criminal trial. Internationally, there are different requirements for admissibility of confession, do our laws are incompatible with international principles. The power to record statement of confession is given to courts.⁹

One thing that we should emphasis is there is no provision in our laws that provide inadmissibility of confession not judicially recorded. So what is the fate of confession out of court? The researcher here is to make principal analysis of the laws vis-à-vis criminal justice system & policy in relation to admissibility of confession before criminal trial.

1.3 Objective of Study

1.3.1 General Objective

The main objective of this senior thesis is to review the conditions for admissibility of confession in Ethiopian laws given out of court and before the criminal trials.

1.3.2 Specific Objective

Particularly the thesis has the following specific /aims/objectives.

- In order to identify the fundamental rights of the suspect in criminal proceeding.
- To explore the situations for voluntariness /involuntariness/of confession in the criminal trials.
- To evaluate the fate of confession made out of court.

⁹ Supra note 7 ,art.35

- To assess the standard/burden/ of proof by the suspect in case when there is coercion practiced against him.
- To examine our laws in relation to the international standard for admissibility of confession.
- Explore the status of confession in our criminal justice system.

1.4 Research Questions

1.4.1 General questions

What are the conditions for admissibility of confession in Ethiopian laws given out of court and before the criminal trials?

1.4.2 Specific questions

There are questions framed regarding admissibility of confession that need to be answered by this senior thesis.

- ❖ What is the fate confession given involuntarily but it has evidential value /probative value/?
- ❖ What is the disposition of confession for the criminal justice system?
- ❖ What is the relevancy of confession/admission/given out of court? Is it deniable?
- ❖ On what specific crimes the courts need further evidence?
- ❖ Do our laws are deficiency on admissibility of confession?

1.5 Significance of Study

The finding of the study will be beneficial for the suspect, courts, societies as well as the overall criminal justice system of Ethiopia. The finding of this senior thesis will support the criminal justice policy makers, legislators.

Confession also saves, time and cost of courts as well as the societies at large so, having these merits, adding another benefit by aware how confession could be made.

More over the finding of the paper will support what are rights of the suspect should be awarded/protected during criminal proceeding. The research will significant for the better protection the rights of the suspect at all and particularly in criminal proceeding.

In addition this paper will be beneficial for the overall societies to have a better know about their fundamental human right and protection afforded both domestically in our laws and at international laws.

Moreover, the finding of the study is also beneficial for our criminal justice system in reaching more efficient and real justice.

1.6 Scope of the Study

The scope of this thesis paper is limited in criminal trial/proceeding /regarding admissibility of confession before court and its disposition in criminal justice system of Ethiopia.

1.7 Research Design and Methodology

My senior thesis is a doctrinal type of research. The senior theses emphasized on analysis of Ethiopian criminal laws. The criminal procedure code, the FDRE constitution, scholastic commentaries and other international legal instruments, which Ethiopia is a signatory were accessed in conducting the paper. Because, analyzing and reviewing such different materials, laws, cases, books, international legal instruments, and scholastic commentaries were very important for the issue at hand.

Therefore, the research approach is purely a qualitative type, which mainly concerned with analysis of particular criminal procedural laws. Particularly, admissibility of confession in criminal trial and its disposition in relation to deferent international human right perspective were explored.

Data Sources

In conducting the research the researcher used both primarily and secondary data.

A. Primary Data

The primary data employed in doing the research were:

- Both national and international legislations, rules, laws were included.

B. Secondary data

Among secondary sources textbooks, journals, encyclopedia, websites, were included.

In doing so, the study has set up the proper, conceptual, legal and theoretical framework, which serves as a springboard to determine the admissibility of confession in criminal trial.

1.8 Organization of the study

This senior thesis is organized in to four chapters. The first chapter deals with introduction, background to the study, statement of the problem, objectives of the study, research questions, scope, significance of the study, research design ,methodology and organization of the study. The second chapter discusses the general overview of admissibility of confession and criminal justice system. In addition different theories rules of confession are assessed. The third chapter deals with analysis of human right in relation to admissibility of confession, the international and regional human right standards as well as its applicability and status in Ethiopian laws. In addition, this chapter deals with the overall findings of the study . The final chapter four deals with conclusion and recommendation part of the study.

CHAPTER TWO: THEORETICAL OVERVIEW OF ADMISSIBILITY OF CONFESSION IN CRIMINAL TRIAL

2.1 Various Theories Underlying Law of Confession

There are different theories of and rationales that have been developed over different period of history.

1. Privilege against self-incrimination

One of the theories behind the confession rule and voluntariness test is based up on the privilege against self-incrimination which demands every person be accorded a free choice whether to confess and no person can be forced or otherwise pressured or tricked in to confessing. The European court on human agreed with such policy justification for excluding confession. When it holds that the objective of privilege against self- incrimination is to protect accused free choice to speak or to remain silent. European conventions on human right implicitly provide for absolute privilege against self-incrimination (art.6 of the convention). This principle may vary from jurisdiction to jurisdiction.

2. Ensuring reliability of confession

The rationale often put for law, simply stated as involuntary statement should be inadmissible is that it is intended to weed out potentially unreliable statements or inherent untrustworthiness of coerced confession. The confession rule has been interpreted to prohibit certain conduct on part of authorities. This in part is because it might result in unreliable evidence. Inducements, threats and sometimes oppressive circumstances have all been proscribed to some extent because they might lead suspects to falsely incriminate themselves.

3. Deterrence preventing abusive interrogation practice

Sometimes confession, which was obtained by operation, is excluded even where there is great certainty that they are true. In this case, commentators have cited the underlying rationale as deterring abusive police interrogation practices. When such confession is excluded by the court, such practice reflects an intention to enforce minimum standards on police behavior since the police misconduct is often to obtain a confession.

4. Protecting the right of the suspects to make autonomous decision

Individual are by nature free and autonomous actor. Actors with natural instinct are self-preservation. It is when authorities that the person's autonomy is violated overbear this natural instinct. The question is whether any police questioning would be over bearing on an individual resulting in excluding such confessions. It very subjective test that some argued that no confession obtained under during custodial interrogation is voluntary. Some other argues threshold of 'over bearing the will' standard should be raised to permit the usual psychological forms of police questioning. It had never been widely accepted in practice. The reality is that state always put pressure on criminal suspect to confess and the court will not reverse that through its jurisprudence.¹⁰In order to guaranty the right of the suspect throughout criminal proceedings, he/she could have the council from very early stage of proceedings, at least immediately up on arrest.¹¹Among the rights protected let see some of them which related with our issue.

2.2 Criminal Justice System Overview

Criminal justice system may have a spectrum of features ranging from primary due process vis-à-vis focus on crime control models. The detrimental factor may be the level of peace, shared values, democratization, crime rate, government legitimacy, national consensus and other variables. Primary crime control model are expected to consider potential infringement of due process as transient/that would recede proportionate to the decline of crime rate civil war or terrorism /.

The distinct functions of the police and public prosecutor under Ethiopian criminal procedure reflect the due process model so that the police and public prosecutor would independently conduct their law enforcement mandates.¹²

¹⁰ The Theories of Law ofConfession/Icclr.law.ubc.ca/cites/icclr.../Es%20paper/20confession20revised ,Accessed on 25/02/2009 E.C at 9:00 am

¹¹ Scholarship.law,Berkeley.edu./cgi/viewcontent/Accessed on 27/02/2009 E.C on 1:00 pm

¹² Criminal Justice System(www.ajol.info/index.php/mlr/article/download) Accessed on 05/03/2009 E.C at 3:30 am

Criminal justice is concerned not only with apprehension and punishment of criminal but also with ensuring that the criminal process /investigation, prosecution and trial/is to be made fairly. According to Herbert packer there are two models of criminal justice based on different factors, one of which is how such conflict is to be resolved; crime control and the other is due process model. Crime control model as its name suggests the conflict is to be resolved by giving precedence to the law enforcement purpose of the law of criminal procedure over fairness purpose. The due process model on the other hand gives priority to fairness of the proceeding over the purpose of enforcing the criminal law.¹³

A. Crime control model

In this model, repression of criminal conduct is most important function to be performed by the criminal process and the police institution has a central role in the process. As stated by Kent Roach, ‘‘most fact finding in crime control model is conducted by police in the streets and station house not by lawyers and judges in the court’’. This model shortens the judicial process by conducting investigation in such a manner that will result plea of guilty by the accused based on which he will be convicted forthwith. Hence, the police strive to extract confession from those they presume to be guilty at their trial. This model holds that pretrial administrative process is more likely to be produce reliable evidence of guilt than a formal procedure. This model assumes factual guilt of the suspect and less concerned with legal guilt. Rather than too many guilt people escaped or many innocent people were prosecuted and convicted.¹⁴

A. Due process model

This model basis on the firm conviction that excluding evidence in such circumstances demonstrates that there is nothing to be gained by abusive power and breaking rules. Moreover, the exclusionary rule is believed to be an important way to encourage and affirm law abiding behavior. This model insists public funds be allocated to those who can’t afford cost of retaining lawyer.

¹³ Wondwosen Demise Kassa, (Ass.proff.) Ethiopian Criminal Procedure, Addis Ababa, Sep 2012,p-30

¹⁴ Id p-30-31

Each party has to be the opportunity to be represented by a lawyer to give practical effect to the remedies and sanctions that the model recognizes as guaranty of due process.¹⁵

2.2.1 The Relation between the Two Models

When we assess the role of the court of appeal on the conviction of illegally obtained evidence, the majority reflected that a typical crime control position ‘where there was sufficient reliable evidence of guilt, even in most serious misconduct by the prosecution shouldn’t result the conviction to be quashed. Whereas some other argues that if the behavior of prosecution agencies has deprived a guilty verdict of its moral legitimacy the court of appeal must have residual power to quash the prosecution no matter how strong evidence of guilt because it is illegally obtained . The integrity of criminal justice system is a higher objective than the conviction of any individual. Crime control prioritizes the conviction of guilt. Even at the risk of the conviction of some (fewer) innocents and with cost of infringement the liberties of the suspects to achieve its goal, while due process value prioritize the acquittal of innocent even if risking the frequent acquittal of guilt and giving high priority to the protection of the civil liberties as an end itself.

Due process model opt to protect individual liberties more interested in bringing about equality in justice system less likely to innocent people and likely to allow the guilt to go free than based crime control value.¹⁶

2.3 Some Fundamental Rights of the Suspect during Criminal Proceeding and Admissibility of Confession in General

A. Presumption of Innocence :

Presumption of innocence is a principle that requires the government to prove the guilt of the criminal defendant and relieves the defendant of any burden to prove his/her innocence.

¹⁵ Supra note 36, p-33

¹⁶ Ibid

Presumption of innocence has recognized in FDRE constitution under article 20 (3). It has two aspects, the presumption impose the burden of proof on public prosecutor and high standard of proof to be met for prosecution. The right to presumption of innocence until proven guilty is one of those principles that influence the treatment to which an accused person is subject from criminal investigations through trial proceedings. This principle is fundamental for protection of human right and must guide the prosecution as well as defense lawyer.¹⁷

B. The right to remain silent and to be informed of that right:

Art. 19 (2) of FDRE constitution and art. 27 (2) cr.pro.c Recognize the right of arrested person to remain silent and be informed of their right to do so. Both the constitution and criminal procedure code impose an obligation on the interrogating police officer to warn the suspect that any statement he makes during interrogation may be used in evidence if this case continues to trial.

C. Prohibition against torture and other inhuman treatment

The prohibition against torture in international law is, like that against slavery or genocide, absolute. Torture is impermissible under any circumstances, including war; public emergency or terrorist threat. The prohibition is so strong and universally accepted that it now has become a fundamental principle of customary international law.¹⁸ Torture is absolutely prohibited under international law. Even it gets customary international law status states have also obliged to exclude any form of torture in their laws. In addition, any confession made through torture is always inadmissible. In Ethiopia, it has fundamental constitutional guaranty. Everyone has the right to protection against cruel, inhuman, degrading treatment or punishment.¹⁹

D. The right to defense council

A defendant has a constitutional right to be represented by an attorney during trial. This right generally provides that anyone who is accused of a crime has the right to receive legal aid from an attorney. The right to counsel may be found in various international, regional, as well as

¹⁷ The Free Dictionary.com/Presumption of Innocence/Legal Dictionary Accessed on 27/02/2009 E.C on 1:00 pm

¹⁸ www.apt.ch/content/files_res/jurisprudenceguide.pdf accessed on 24/02 /2009 E.C at 3:00 pm

¹⁹ Federal Democratic Republic of Ethiopia Constitution, 1995, Neg. Gaz. 1st year no 1, art. 18

domestic legal authorities.²⁰In our legal system also the right to represented by legal council is constitutionally guaranteed.²¹

2.4 Rules of Interrogation and Confession

Before considering the special problems which arising in investigation and interrogation of the suspect , it is necessary to describe briefly the general rules regulating police questioning for the suspects and the right of the suspect to remain silence. There three rules that can be considered in the interrogation proceeding.

1. Police have the right to question any person any time when he/she investigates a crime.
2. A person cannot be compelled to answer such question. A suspect has the right to remain silent and no adverse influence may be drawn from the exercise of this right.
3. Two distinct rules apply to admissibility in evidence of any confession or made admission to the police. These two distinct rules are:

A. To be admissible the statement must be voluntary.

This means not the result of duress, intimidation, persistence importunity or sustained or undue influence or pressure.

B. Even if a statement is found to be voluntary it may still be excluded in the exercise of judge's discretion if it is considered that it would be unfair to the accused to receive it as evidence.

A confession will not be admitted unless it was made voluntarily. The accused is free to choose to either speak the confession or remain silent. Even if the statement was voluntary and therefore admissible, the trial judge has discretion to reject it if it was obtained in circumstance that would render it unfair to use it against the accused.²²

²⁰[defensewiki.ibj.org/index. php /Right to Counsel](http://defensewiki.ibj.org/index.php/Right%20to%20Counsel) Accessed on 24/02/2009 E.C at 4:00 pm

²¹ Supra note, 25 art.20(5)

²²[www.alrc.au/publication/22...law relating to interrogation](http://www.alrc.au/publication/22...law%20relating%20to%20interrogation). Accessed on 24/02/2009/ E.C at 3: pm

2.4.1 Exclusionary Rule

One of the cornerstones of US constitutional protection is the exclusionary rule. The exclusionary rule states that evidence obtained as a result of an illegal search or seizure or illegal interrogation is not admissible against the victim in a criminal proceeding. There are rationales behind this rule including,

1. Deterrence of law enforcement officials from engagement of such a prohibited conduct
2. Preservation of judicial integrity and taint of court by preventing unlawful police conduct.²³

2.5 Admission and Confession Distinguished

An admission is a statement that has to be proven. Admission is toward proving guilt, but they are not sufficient for that. If during the subsequent trial, there is no evidence of the crime except the given admission. A charge is likely to be dismissed by the judge. On the other hand, a confession is a statement of responsibility for committing of an act of crime. A confession is sufficient for proving guilt of the suspect. Admission is often a result of interrogation, e.g. if during the interrogation the suspect says ‘I do not know what I was doing & I am sorry for that’ this statement is an admission. After the admission, the interrogating officials continue the interrogation process until the suspect accepts personal responsibility for what he did. Some suspect would not go beyond the admission and in this case, there is still a reasonable doubt that a person under suspicion did not commit the crime he admits he did. Confession on the other hand would put an end to interrogation process and the case would go to trial in practice. Interrogation more often result in an admission than confession. The law of confession has been criticized for its confusing development in most jurisdictions. The law of confession plays gear roles for the interest of society in controlling crime and the interest of suspect in fair treatment, the law of confession plays a number of roles. It seeks to ensure reliability of information being put for word at trial. It also plays a role in deterring or preventing police abuse interrogating suspects of crimes. It plays a role in protecting the individual’s right to self-

²³ Defense [wiki.ibj.org/index. Php/exclusionary rule/](http://wiki.ibj.org/index.Php/exclusionary%20rule/)Accessed on 25/02/09E.C at 4:00 pm

determination and the ability to make free choice in whether or not to seek to the police or remain silent without being compelled to do so.²⁴

In criminal justice admission is a statement of acknowledgment that certain facts regarding the specific case are true. An admission can be either expressed via written or spoken statement or it may also be implied by the conduct of the person under interrogation. In law practice an admission is used as a means for discovery as evidence or as a pleading device.

In criminal justice system, a confession is a statement by which a person acknowledges his /her guilty. A confession is considered by law to be ultimate evidence of guilt if given voluntarily and as due process.

Some countries use admission for civil case; others use admission for both civil and criminal. Some other countries use confession for criminal case. Whatever the case confession is one species of admission which is used for criminal matters. Confession is included under admission. Confession ‘የእምነት ቃል’ means proving the participation of his/her guilty in addition to how he commits voluntarily either oral or written statement.²⁵

There is reasons /justifications/for admissibility of confession before criminal trial.

- ✓ A presumption of no one admits against himself unless it is true.
- ✓ Confession is expression of repentance of guilty.
- ✓ It saves time & money by searching additional evidence.
- ✓ It facilitates the role of courts.

When the arrested person admits each and every ingredients of crime and nothing is left ambiguous as per the practice of courts except the crime of homicide no other corroborated evidence is needed.

²⁴ They differ.com/difference-between-admission and confession/Accessed on 25/02/2009 E.C at 3:00 am

²⁵ ታጠቅ ታደሰ ብ/ጀ የማስርጃ ህግ መሰረታዊ ሀሳቦች አዲስ አበባ ዩኒቨርሲቲ 4ተኛ እትም አዲስ አበባ 2003 ዓ.ም ገፅ-48

When a confession is given out of court /given to police investigator, it needs to be with full consent/voluntarily / and as per legal proceeding should be proved by beyond reasonable doubt to have relevancy. Since, it is difficult to prove voluntariness mostly the court needs further corroborative evidence. Therefore, we can say that, confession out of court is easily deniable. Moreover, confession before competent court is conclusive. If confession made voluntarily before competent court, the court can enter plea of guilty as per art.134 of cr.pro. The suspect's involuntariness is enough, and then it is the burden of public prosecutor to prove his voluntariness of the suspect in giving his confession.²⁶

The law of confession reveals the complexity and conflicting interest involved in controlling crime while also respecting individual human rights. At the first glance, the confession rule can be mistakenly straight forward. A confession is inadmissible if the suspect do not act voluntarily due to police coercion. However, history tells us that the law of confession is anything but straight forward the perceived need for confession in the criminal process for the effective prosecution of the 'guilty' competes with the principle of limiting the ability of state to compel self – incriminating evidence.²⁷ Such complex interplay is reflected in various theories which underline the law of confession; ensuring privilege against self-incrimination, ensuring reliability of the confession, preventing abusive interrogation practice, protecting the right of the suspect to make autonomous decision.

2.6 Relevancy of Confession

Despite increased evidence that confession may be unreliable. They remain the gold standard of evidence for police investigation. One reason for rejection of some confessional statement is that when confession is not voluntary there is danger of the accused falsely implicating him. Different countries have different rules governing the admissibility of confessions.

²⁶Id p-52-53

²⁷ Ibid

A confession is best evidence in criminal proceedings. A confession made in judicial proceeding is of greater value than all other proofs. If it is direct, true and satisfactorily proved, it should occupy the highest place of authenticity when it comes to proof beyond reasonable doubt that is why sometimes confession by itself alone is sufficient without further corroboration to warrant a conviction.

A confessional statement that is free, direct, positive and voluntary is enough for ground of conviction. The burden of proving a confession voluntarily rests on the prosecution in criminal proceeding i.e. judge will have discretion to proof voluntariness of a confession. The question here is that by what degree should the suspect proof his involuntariness on a confession to the judge. As we understand the standard of proof of confession is same as proof of guilty /beyond reasonable doubt/under the shoulder of public prosecutor to prove the voluntariness of suspects confession.²⁸

A free and voluntary confession deserves of the highest credit. Because, it presumed to flow from strongest sense of guilty and it is admitted as a proof of a crime to which it refers or to put in another way confession are admitted because it can be presumed that what a person has said against his own interest are true. Admissibility of confession have known almost entirely been supplemented by statutory provisions but underlying policy remains. Confession is admitted to prove the truth of those matters stated only if they are sufficiently reliable to be placed before the tribunal of the fact.²⁹

2.7 Rational for Excluding Involuntary Confession

The admissibility of confession may be challenged at any time before evidence of that confession is given. No court is bound to consider the admissibility of a confession simply because a suggestion has been made that it was obtained improperly. The truth of confession is irrelevant to its admissibility. In many cases, the defense is unable to challenge the way in which the confession was obtained. Necessarily the defense should include some reasons of a

²⁸ Relevancy of Confession (www.ijhssnet.com/journals/ vol-3no 21 special.../31.pdf. Accessed on 27/02/2009 E.C at 2:00 pm

²⁹ Evidence Raymond Emson, LL.M lawyer in Government Legal service, fourth edition.p-164-165

false confession having been given. Often this is difficult, but everything depends upon the circumstance of the case and it is sometimes possible to raise a doubt and thereby gain an acquittal. Police sometimes find valuable evidence because of following up on the information given by him by an accused person. If he gives information in a course of confession, which is ruled, gives that information in course of confession, which is ruled inadmissible, allows the prosecution to use any evidence discover other evidence. For example, if the accused charge with murder is tortured and tells the police that the knife he used in the killing is in his garden shed, evidence may be called about the finding of the knife even though the confession itself may not be used and then the prosecution may not however refer to confession. Here is the dilemma that involuntary confession on one side and concrete evidence is there as a result of involuntary confession but credible could the court use as evidence is fair because from the very beginning involuntariness is there?³⁰

Involuntary confession is excluded because their use in evidence is against the accused. And it violates his right to procedural due process. It is contrary to justice and due process of law to allow evidence extracted from the accused is against his will to be used to convict him. There are reasons why the court excludes involuntary confession.

First, Use of such confessions violates defendant's right against self-incrimination and the right to remain silent.

Second, such confession is likely to be false.

Third, to restrain police investigators from such illegal conducts.

Fourth, it is against fundamental human right of the suspect.

The underlying bases for rejection of involuntary confession are the inherent unfairness of using against the accused statement that has been coerced in to making it. The reliability rational for excluding confessions was carried to its logical conclusion. Any confession would be admissible if proved true or substantiated despite the fact that it is not freely given by the accused. This is not the law due to inherent unfairness to the accused of using a confession

³⁰Rosamund Recay BA(hons), Evidence text book by cert Ed, MA, LLM solicitor, fifth edition.p-192-193

coerced from him. Courts will not allow an involuntary confession to be introduced in evidence even if proved true.³¹

Proper procedure has to be followed in deciding the issue of voluntariness. The Ethiopian laws on the matter are not clear. None of the Ethiopian laws shows sufficient methods of ascertaining the voluntariness of confession. Art. 27 of our criminal procedure code only impose duty of police not to follow illegal methods of obtaining confession. What are those illegal methods? What the law says that art. 35 is to ask the accused himself as to whether he is giving his confession voluntarily for judicial confession. It may be one mechanism but it is not full.³²

2.8 Appropriateness of Confession in Convicting Accused person

No consensus exists among countries on undesirability of convicting an accused person based on confession alone. There are arguments for and against conviction based on confession alone.³³The argument against conviction exclusively based on a confession points to the risk of false confession. Maimonides made clear that because a confession, though made without external pressure, may still be false due to internal pressure; it should not be used as adequate evidence to warrant conviction.³⁴Where the accused convicted based on his confession, the reliability of which cannot be verified, there is a risk of convicting the innocent and thereby letting the criminal remain at large. Hence, the argument goes, confession needs to be corroborated by other evidence before an accused is convicted.³⁵

³¹The Rational for Excluding Involuntary Confession (www.repository.law.indiana.edu/cgi/view_content.cgi?article3622. accessed on 28/02/2009 E.C at 3:15 am

³² Ibid

³³Wondwosen Demise Kassa, (Ass. Prof.) Ethiopian Criminal Procedure, Addis Ababa University, Sep 2012,p-110

³⁴ Ibid

³⁵ Ibid

A major argument advanced in support of conviction based on a confession alone is that there are times where no corroborating evidence is available. Hence, the argument goes, requiring additional evidence, at least in such cases, would have effect of acquitting real offenders who have confessed but cannot be supported by other evidence. Wigmore argues that where the suspect confesses freely, requiring corroboration is unavailable. In Miranda rules, opines that corroboration requirement is not necessary.³⁶

In Ethiopian case, there is no clear statutory provision with the issue of weight of confession and requirement of corroboration of other evidence. But we can have a clue from our criminal procedure code it says,

Art. 134. - Plea of guilty.

(1). Where the accused admits without reservations every ingredient in the offence charged, the court shall enter a plea of guilty and may forthwith convict the accused. There is a scenario in which the court will convict the accused in case when the accused admits each and every ingredients of the crime charged. Under the same law sub article two where a plea of guilty has been entered, the court may require the prosecution to call such evidence for the prosecution as it considers necessary and may permit the accused to call evidence. Therefore, we can argue that under article 134(1) of criminal procedure code it allows the court to convict the accused forthwith in case when he admits each and every ingredients of the crime charged. Even in sub article two of the same provision they may call corroborative evidence the court may require when it is necessary. So it is optional for the court to convict the accused up on confession. Specific crimes which may require further corroborative evidence are still not mentioned in our criminal procedure code.

³⁶ Id p-111

CHAPTER THREE: ANALYSIS OF INTERNATIONAL HUMAN RIGHT STANDARDS OF ADMISSIBILITY OF CONFESSION AND ETHIOPIAN LAWS

3.1 International Human Right Standards of Admissibility of Confession

Major international human right instruments incorporate rules relating to confession by way of protection to the criminal suspect (international covenant on civil and political right, universal declaration of human right, UN convention against torture, inhuman degrading treatment). Protection against illegal confession is incorporated as part of free and fair trial.³⁷

ICCPR provided that anyone who is charged with criminal liability in relation to determination of charge, has the right not to be compelled to be a witness or confess guilt against himself.³⁸ Self-incrimination applies only in the absence of any direct or indirect pressure exerted by investigating police officer with the view to obtaining confession.

The convention against torture provides that the government of each state should ensure that any statement that is established to have been made because of torture should not be invoked as evidence in any proceedings.³⁹

3.2. Regional human right standards of admissibility of confession

In addition to the international human right standards of admissibility of confession, various regional HR standards enacted for the protection against illegally obtained confession. The African charter on human and people's right indirectly recognize the right to fair and free trial.⁴⁰

³⁷ Supra note 5, Article, 14(3)(g)

³⁸ Ibid

³⁹ Un General Assembly Convention Against Torture and other Human Degrading Treatment, article.15

⁴⁰ Protocol to the African charter on human and peoples right on the establishment of an African court on human and peoples right, paragraph 3 and 4

This protection is afforded to dignity of human being, his liberty and security, the right to be heard including the right against self –incrimination and the right to remain silent. The principle protect suspects the suspect from involuntary confession and goes further in delimiting what sort of confessions are regard as illegal .For instance, confession given with coercion, confession obtained with serious violation of HRS and confession given in accordance with detention are not admissible as evidence.⁴¹

After apprehension of the suspect, the police investigation is mostly at extracting a confession. In fact the suspects own admission is best evidence in proving his guilt, or it is believed to be a result of the “strongest feeling of guilt” Hence, confession is said to be considered “the queen of evidence”. That is true only where the confession is given voluntarily.⁴²

Voluntariness of confession does not guaranty its reliability. It is still possible for the arrested person for his own personal reason to give a false confession, which may expose him to conviction despite his innocence while the real offender remains at large. Because most legal system do not pass judgment on guilt of the accused exclusively based on admission of guilt. Instead, evidence corroborating confession is required.⁴³

3.3Status of Confession under Ethiopian law

Some legal system, such as India doesn't recognize interrogation as a proper method of obtaining confession to be used as evidence.⁴⁴ In Argentina, police do not allowed to conducting interrogations.⁴⁵ However, most legal system recognize police interrogation as a legitimate way of collecting evidence .It is only where the voluntariness of confession obtained

⁴¹ Ibid

⁴² Supra note 2, p- 89

⁴³ Id, p-90

⁴⁴ Wondwosen Demise Kassa, (Ass.proff.) Ethiopian Criminal Procedure, Addis Ababa University, Sep 2012,p-90

⁴⁵ Ibid

through police interrogation is doubtful that confession is not to be used as evidence .for instance, in Canada, Germany and France voluntariness of confession obtained through police interrogation is doubtful to be used as evidence.⁴⁶

In the course of police investigation an arrestee, in Ethiopia may give his statement in police station and /or before court of law.⁴⁷

Stanly Z. Fisher argues that Ethiopian criminal procedure does not allow investigative police officer to interrogate an accused & receive a confession that might be used as evidence during his trial. In the Ethiopian criminal procedure code does not allow confession not judicially recorded to be admissible in evidence at trial.⁴⁸The drafter of the code did not expressly state the requirements of inadmissibility confession given out of court confession.⁴⁹

3.3.1FDREConstitutional Human Right Protection Afforded Against Involuntary Confession

The FDRE constitution affords protection to the right of person arrested and the right of accused person.⁵⁰Among the protections afforded are the rights which are related to the protection of suspect against illegal confession.⁵¹The person arrested shall not be compelled to make confession or admission, which could be used in evidence against him. Additionally, any evidence obtained under coercion shall not be admissible.⁵²

⁴⁶ Id, p-91

⁴⁷ Supra note 7, article 27 and 35

⁴⁸ Supra note, 40, p-92

⁴⁹ Supra note 2, p-92

⁵⁰ Supra note 6,article.19 and 20

⁵¹ Id, article.19(5)

⁵² Ibid

The constitution provides general right of an arrested person and accused person. As such, it is for the other legislations to provide the details of the rights in particular way. I.e. criminal procedure law .There is two mechanisms of recording confession according to criminal procedure code.

First, Confession obtained at police station to the police officer as per art.27 cr.pro.c

Second, Confession obtained before the court as provide under art.35 cr.pro.c

As per art.27cr.pro.c once accuser's identity he will as to answer regarding allegation made against him. But in this process such person may not be compelled to answer the allegation made against him. Even it needs to tell that he has the right to remain silent. However, the consequence of not following the right of the accused is not provided in criminal procedure which means the liability of police officer. As per art.27 of cr.pro.c interrogation is made by the police officer, so under 27 (3) statement made shall be recorded. That means the record of police is not confession; rather a statement since the power to record is clearly given to the court.

3.4 Research Findings

Firstly, different international instrument, regional as well as particularly Ethiopian criminal justice has incorporate rules relating to confession by way of affording protection to criminal suspect. As understand from different international and regional instruments they provide protection against illegal, involuntary confession to be admissible as evidence for prosecution of the suspect. The anti-terrorism proclamation is the only legal instrument, which does not clearly exclude coerced confession as admissible evidence.⁵³ The Constitution and criminal procedure code of Ethiopia any evidence obtained under coercion shall not be admissible. Moreover, the arrested person shall not be compelled to make confession or admit cases that he is prosecuted and which could be used as evidence against him.⁵⁴In this provision we can

⁵³Ethiopian Anti-Terrorism Proclamation No. 652/2009,2009, Neg. Gaz., art 23(1)

⁵⁴ Federal Democratic Republic of Ethiopia Constitution , 1995,Neg. Gaz. 1st year no 1,Addis Ababa /art.19(5)

conclude that it is in line with the international and regional instruments. However, the provision only tells us the inadmissibility of coerced confession. The liabilities of those who exercise coercion against the suspect are not there. As the constitution is the general law the detail is left to other subordinate laws. The appropriate law for our case is either of criminal law or criminal procedure or tort. Confession is said to be the "queen of evidence" that is true only where that confession is given voluntarily. However, voluntariness of confession does not always guarantee its reliability. Because it is possible for the arrested person for his own personal reason to give a false confession. At this time despite there is a real offender the innocent confessor may be prosecuted. Therefore, we can't always depend on voluntariness of confession for reliability. We have to employ other methods of getting a true offender and other evidence corroborating the confession. Most legal system does not pass judgment on guilt of the accused exclusively based on confession of guilt. Instead, evidence corroborating confession is required. Art.35 of cr.pro regulates the power of the court to record statement and confession. It says any can record a confession. Either it includes either the trial court or other subordinate court may record the confession.

If the suspect confesses out of the trial court, an already convinces the court he is tortured when he is appeared for giving confession that would burden the public prosecutor with extra effort of convincing the court that suspect is laying his alleged torture.

If the suspect already confessed to the trial court, it is impossible for the suspect to exclude later. Immediately the court enter plea of guilty as per criminal procedure code.⁵⁵

Art 35 cum 85(3) of cr.pro any extra judicial admission in criminal case can be denied subsequently. However, the public prosecutor is at burden of proof that admission was given out of free will of the suspect.

There is dilemmas regarding coerced confession and on a person who practice it,

A. Coerced confession is to be totally excluded from consideration because while in searching of the true criminal we can't violate other crime. It widely accepted argument especially for

⁵⁵Criminal procedure code of the empire of Ethiopia, Proclamation no 185 of 1961 Neg.t Gaz.,art.134

protection of human right.⁵⁶ While who exercise this type of illegal act (coercion) or use of force to get confession induced moral damage on the suspect. Therefore, the coerced investigator has to be liable for his criminal act as well as civil damages as per art.2027 (1), 2028, 2035 or 2038 of Ethiopian extra contractual liability law and administrative liability as well.⁵⁷ However, do we punish coercer irrespective of the innocence of the suspect?

B. Coerced confession must be considered if it relevant and conclusive. However, a person who exercises such coercion must be punished.

C. Some other still said that rather than totally excluded the coerced confession which has evidential value we have to use that confession as an interim to search other relevant and efficient evidence.

Voluntariness is variable and inconsistent. Voluntariness as it is envisaged in our criminal procedure art.35 (2) is to be determined by questioning of the person making it. However, there are factors to be considered. The crucial element of police coercion, the length of interrogation, its continuity, as well as the defendant's maturity, education, physical condition and mental health are among others.

When I assess the confession, regarding in anti-terrorism proclamation cases it says that there is no restriction of confession through torture.

By making intelligence reports admissible in court even if the sources and methods are not disclosed, the law effectively allows evidence obtained under torture (if defense counsel cannot ascertain the methods by which intelligence was collected, they cannot show that it was collected in an abusive way). The Proclamation deems confessions admissible without a restriction on the use of statements made under torture.

⁵⁶ Federal Democratic Republic of Ethiopia Constitution ,1st year no 1,ADDIS ABABA-August Neg. Gaz./1995art.19(5)

⁵⁷ Civil Code of the Empire of Ethiopia Proclamation No 165 of 1960 Neg. Gaz., art.23

Without prejudice to the admissibility of evidences to be presented in accordance with the Criminal Procedure Code and other relevant legislations, the following shall be admissible in court for terrorism cases.

Confession of a suspect of terrorism may be in writing, voice recording, and video cassette or recorded in any mechanical or electronic device.⁵⁸ In some cases a person may be criminal liable and punished despite his innocence, this may be due to the suspect himself confess for his own personal reason (May be for money, fame) or it may be due coercion of police to confess. Therefore, sometime after the real offender or criminal appears before court and acknowledges each and every ingredients and he may testify he is the real criminal. At this time we need to have a law that make free the innocent and a system of compensating him. Till now our laws are silent with this regard. States have a responsibility to restore the lives of the wrongfully convicted to the best of their abilities.

CHAPTERFOUR: CONCLUSION AND RECOMMENDATION

4.1 Conclusion

Admissibility of confession in criminal trial has a great impact on the criminal justice systems of a country. Confession is nowhere defined under our laws. As we understand from different literatures, a confession is a statement made by a person charged with the commission of crime freely acknowledges by him to be a guilty of offence charged against him. This definition is widely accepted. When the court of law considers a confession as admissible evidence they should satisfied beyond reasonable doubt that the confession was obtained voluntarily and as per due process.

Major international and regional instruments incorporate rules relating to a confession by way of affording protection of criminal suspect. As Ethiopia is a party of most of them, it needs to

⁵⁸ Ethiopian Anti-Terrorism Proclamation No. 652/2009,art 23(1)

be in line with those instruments. Regarding inadmissibility of coerced confession, we can say that Ethiopia laws are in line with those international instruments Art.19 (5) of FDRE constitution. A confession may be given before court or out of court. The out of court confession may be either before interrogating police officer or ordinary person. The Ethiopian criminal procedure code doesn't allow those not judiciary recorded confession to be admissible evidence at trial. Therefore, we can safely conclude that confession made out of court is easily deniable before trial court. However we can use it as corroborative evidence when,

- It is made as per due process and not made through coercion and
- The suspect approves his statement at trial

When a confession is made before court, it may be by either the trial judge or other subordinate officers.

If the suspect confesses before the trial judge, the court immediately enters plea of guilty and it has higher degree of relevancy.

When it is given before court of other jurisdiction, it creates a burden on the public prosecutor to convince the court/judge/that the suspect is laying his alleged torture.

There are arguments regarding coerced confession and the person who exercise/practice/coercion.

- Coerced confession should be totally excluded from consideration. It is widely accepted argument. A person who exercises coercion should be criminally, civilly as well as administratively liable according to the circumstance of the case.
- Others rather than totally excluded coerced confession which has evidential value we have to use that confession as an interim to search other relevant and sufficient evidence.
- Some other argues we have to consider and take measure against those illegal's.

The above stated arguments have their own merits and demerits. We have to employee flexible and or a mixed type of method. Regarding coerced confession it is totally excluded in our laws art.19 (5) of FDRE constitution and those international instruments ratified by Ethiopia because

it considered as part and parcel of law of the land. In case when we are in doubt that whether the suspect are coerced or not then we have to employ/use that evidence as an interim to search other relevant evidence. Regarding liability of the police coercer, he should be liable as per relevant law in case he practice coercion.

Voluntariness of confession is not always guaranty the credibility/relevancy of evidence. Hence, the suspect may confess for his own personal reason. In case of doubt even for voluntary confession according to circumstance of the case /may be graveness of the crime the court should have to use further corroborative evidence.

In this regard our law is not clearly stated, art 134(1) (2) of cr.pro does not identify for which specific crime the court need further evidence.

Confession is a " queen of evidence" and it has wide implication on over all criminal justice system when that confession is,

- Made as per due process of the law
- Made as per free will and voluntarily
- Reliable/not made for personal reason
- corroborated by other evidence

The anti-terrorism proclamation 652/2009 art 23(5) deems confessions admissible without a restriction on the use of statements made under torture. Which is not clearly excluded confession which obtained under coercion to be inadmissible evidence before the court in terrorism case. This article and also provisions of the proclamation should be interpreted as per the constitution and international human right instrument.

There is no system of law making the making free & compensating the wrong confessor through any reasons but innocent suspect who are punished. Then after some time the true offender appeared and admits each ingredients of the crime and his guiltiness as well.

4.2 Recommendation

Taking in to account the problem identified and the research findings the author of this senior thesis in forwards the following recommendations.

- Rather than relying on the confession of the suspect, the court may search further corroborative evidence.
- The lawmakers or legislators should identify clearly the acts, which constitute coercion. It should include intimidation, treating use of force, lengthy detention, and promise deprivation of good faith, undue influence and psychological coercion.
- Specific crimes which constitute / which need further evidence in addition to confession should be clearly identified and included.
- Since it is against the constitution and fundamental international human rights principle, coerced confession shouldn't be admissible before the court of law. For instance, art.23 (1) of anti-terrorism proclamation no 652/2009. The legislator shall amend that specific article incorporate in line with art.19 (5) of FDRE constitution.

Bibliography

I. Laws

1. Civil Code of the empire of Ethiopia, 1965, Neg. Gaz. proclamation no 165,
2. Ethiopian Anti-Terrorism proclamation, 2009, Neg. Gaz. Proclamation No. 652/2009
3. Ethiopian criminal procedure code, 1961, Neg. Gaz. Proclamation no 185
4. Federal Democratic Republic of Ethiopia Constitution, 1995, Neg. Gaz. 1st year no 1,
5. International Covenant on Civil and Political Rights Adopted by General Assembly of United Nation on 19, December, 1966,
6. Protocol to the African charter on human and people's right on the establishment of an African court on human and people's right
7. UN General Assembly Convention against Torture and other Inhuman Degrading Treatment,

II. Books

1. Raymond Emson, LLM lawyer in government legal service, Evidence, fourth edition.
2. Rosamund Recay BA (hons), cert Ed, MA, LLM solicitor, Evidence text book, fifth edition
3. Teshager worku revised by H/Mariam Yohannes Bahir Dar University, faculty of law, law of criminal procedure, may, 2009,
4. Wondwosen demise Kassa, Ethiopian criminal procedure (Ass. Proff.) Addis Ababa. Sept. 2012
5. የማስረጃህግመሰረታዊሀሳቦችበታጠቅታደሰበ/ጀነራልአዲስአበባዩንቨርሲቲ 4ተኛእትምአዲስአበባ 2003 ዓ.ም

III. Websites

1. Criminal justice system (www.ajol.info/index.php/mlr/article/download)
2. Confession/Icclr.law.ubc.ca/cites/icclr.../Es%20paper/20confession20revised.pdf
3. Defense ewiki.ibj.org/index. Php /Right to Counsel
4. Defense wiki.ibj.org/index. Php/exclusionary rule/
5. The free dictionary.com/presumption of innocence/legal dictionary
6. They differ.com/difference-between-admission and confession/
7. The rational for excluding involuntary confession (www.repository.law.indiana.edu/cgi/viewcontent.cgi?)
8. . Relevancy of confession (www.ijhssnet.com/journals/ vol-3no 21 special.../31.
9. . Scholarship law,Berkeley.edu./cgi/viewcontent/
10. . [Www.alrc.au/publication/22...law relating to ninterrogatio](http://Www.alrc.au/publication/22...law%20relating%20to%20ninterrogatio).
11. . www.apr.ch/content/filesres/jurisprudenceguide.

